

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

**COMPLAINANT’S COMBINED MOTION FOR LEAVE TO EXCEED PAGE LIMIT AND
AMENDED RENEWED MOTION TO ENFORCE THE APRIL 1, 2026 ORDER AS TO
REQUESTS FOR PRODUCTION NOS. 4 AND 7, FOR SANCTIONS UNDER 46 C.F.R. §
502.150(b), AND FOR REOPENING AND EXTENSION OF DISCOVERY
MOTION FOR LEAVE TO EXCEED PAGE LIMIT**

Pursuant to 46 C.F.R. § 502.71(d), Complainant respectfully requests leave to exceed the page limit applicable to non-dispositive motions. Good cause exists because this filing amends the Renewed Motion already held in abeyance pursuant to the June 5, 2026 Order so that Complainant could supplement the enforcement record following the depositions. The July 14, 2026 Order also specifically identified the absence of the certified deposition transcripts and supporting evidence. This motion addresses Respondent’s compliance with the April 1, 2026 Order as to two Requests for Production, the sworn testimony of two witnesses, the contradictions between that testimony and the Villena Declaration, the resulting prejudice, Respondent’s challenge to the depositions, and the separate remedies available under 46 C.F.R. § 502.150(b). Presenting those related matters in one filing avoids fragmented and duplicative motions and provides a complete record for decision.

Complainant previously sought an extension of the filing deadline, but that request was denied on July 14, 2026, leaving Complainant only the remaining time before the existing deadline to complete this filing and assemble the supporting record. Because this filing amends the Renewed Motion already held in abeyance, is due under the schedule established by the Presiding Officer, and had to be completed within that compressed period, Complainant did not have sufficient time to seek Respondent’s concurrence separately concerning the page-limit request.

The requested page extension will not prejudice Respondent. Respondent will receive the complete motion and a full opportunity to respond. By contrast, Complainant has already been prejudiced by having to prepare an exhaustive enforcement motion concerning discovery obligations that were litigated and decided months ago, solely because Respondent failed to comply with the April 1, 2026 Order and later disputed the evidentiary basis for enforcement. Complainant therefore requests leave to file the motion in its present form.

**COMPLAINANT’S AMENDED RENEWED MOTION TO ENFORCE THE APRIL 1, 2026
ORDER AS TO REQUESTS FOR PRODUCTION NOS. 4 AND 7, FOR SANCTIONS UNDER
46 C.F.R. § 502.150(b), AND FOR REOPENING AND EXTENSION OF DISCOVERY**

Complainant FormuKleen, Inc., by and through its representative, and pursuant to the June 5, 2026 Order Following Status Conference, files this Amended Renewed Motion to Enforce the Presiding Officer's April 1, 2026 Order granting Complainant's Motion to Compel as to Requests for Production Nos. 4 and 7 ("RFP Nos. 4 and 7"), for sanctions under 46 C.F.R. § 502.150(b), and for reopening and extension of discovery. Complainant incorporates its May 31, 2026 Renewed Motion to Enforce, including its complete written conferral record, in full. The certified deposition transcripts of Respondent's employees Eddy Del Monte (taken June 25, 2026) and Isaac Sarmiento (taken June 26, 2026) are attached as Exhibits A and B.

This is no longer a motion asking the Presiding Officer to decide whether Respondent must produce the documents requested in RFP Nos. 4 and 7. The Presiding Officer already decided that question on April 1, 2026. Respondent, represented by counsel, objected. Complainant moved to compel. The issue was fully litigated. The Presiding Officer rejected Respondent's arguments as "off-mark," held that "almost any communication between Respondent and any third party is potentially relevant," and ordered Respondent to produce the documents. April 1 Order at 11.

The only remaining question is whether Respondent obeyed that Order. Respondent's own sworn testimony establishes that it did not.

Respondent represented under penalty of perjury that there were "no additional document locations to be searched, nor searches to be performed." Declaration of Ricky Villena ¶ 17. Eddy Del Monte - the TSS employee whose email signature identifies him as TSS's Import Coordinator (Exhibit D), and who generated the delivery orders, transmitted pickup and delivery authority, communicated with the trucker and the other relevant third parties, and maintained the shipment-level records for both

subject containers - testified that his emails were never searched to collect responsive communications for production:

Q. So, nobody at TSS went through your emails in order to collect them to give them to FormuKleen, correct?

A. Yes.

Del Monte Dep. Tr. 87:3-6. He also testified:

Q. Were your emails searched by anybody at TSS for third-party communications in relation to this case, yes or no?

A. Well, they were not searched.

Del Monte Dep. Tr. 86:1-5. Asked whether delivery orders had been searched: "Everything was just reviewed and nothing, nobody searched anything." *Del Monte Dep. Tr. 88:17-19.* Arrival notices were not searched, trucker communications were not searched, and nobody searched his records for discovery. *Del Monte Dep. Tr. 89:5-21.* Asked what date range was searched by anybody at TSS: "Nobody, nobody here has searched anything." *Del Monte Dep. Tr. 90:10-12.*

The same witness confirmed the withheld records exist. Asked whether it was plausible that TSS acted as a warehouse, facilitated trucking, and participated in customs clearance without a single third-party email: "Of course there are emails." *Del Monte Dep. Tr. 119:13-17.* "Emails are accessible." *Del Monte Dep. Tr. 120:6-11.* And asked whether the third-party communications FormuKleen was not a party to were ever given to FormuKleen, "either previously or when required for this case": "I did not do it, no." *Del Monte Dep. Tr. 121:8-12.*

Those sworn admissions cannot be reconciled with Villena's sworn representation. This is not a dispute over whether one additional search term might have been useful. Respondent represented that all required searches were complete. Its principal custodian testified that the required searches were not performed, that the responsive records exist, and that they were never turned over.

The contradiction is especially serious because the April 1 Order did not merely require a general description of Respondent's systems. The Order required a declaration from a witness with first-hand knowledge identifying every repository searched, every person who participated, every electronic and physical search performed, the search terms used, and whether any additional locations or searches remained. The Order further required Respondent to complete any remaining searches and

make supplemental production by the compliance deadline. Respondent was therefore under an express Order to do exactly what its own witness says it did not do.

The April 1 Order was not advisory. It was not a suggestion that Respondent conduct whatever two-address search it preferred. It was a binding Order entered after the Presiding Officer had already expressed concern about poor recordkeeping and possible spoliation. It required complete production. Respondent failed to comply, later admitted its prior searches were deficient, promised further searches, claimed complete production, and then presented witnesses who established that the principal custodian's mailbox and core document categories had never been searched.

Nevertheless, Complainant has been required to identify the missing custodians, identify the missing third parties, identify the missing document categories, explain why those records necessarily existed, confer repeatedly, file an initial motion to enforce, confer again, file a renewed motion, take depositions at great cost to prove the existence of documents already compelled, establish under oath that the principal custodian's mailbox was not searched, and now return yet again to ask the Commission to enforce an Order entered more than three months ago.

That is backwards. The party that prevailed on a motion to compel should not bear the continuing burden of policing whether the losing party obeyed the resulting Order, reconstructing the losing party's operations, and repeatedly proving that the ordered documents exist. Nor should Respondent be permitted to consume the discovery period through noncompliance and then obtain a litigation advantage from the absence of evidence it was ordered to produce.

The July 14 Order stated that Complainant's allegations of obstruction and misleading discovery conduct lacked evidentiary support because Complainant had not attached the deposition transcripts. The certified transcripts are now attached as Exhibits A and B. They provide the precise evidence the July 14 Order stated was missing.

The July 14 Order also acknowledged that Respondent "has failed to produce materials timely, and may have engaged in gamesmanship." The sworn testimony now removes the qualification. Respondent did not merely produce late. Respondent represented that its searches were complete while never searching the mailbox of the employee who created, sent, received, and maintained the responsive records. This is proven noncompliance with a binding discovery Order. It requires enforcement with meaningful consequences.

I. THE APRIL 1 ORDER ALREADY LITIGATED AND DECIDED RELEVANCE, SCOPE, AND RESPONDENT'S SEARCH OBLIGATIONS

A. The Presiding Officer Determined That the NVOCC Issue Required Fact-Intensive Discovery - and Respondent Withheld Precisely the Documents That Inquiry Requires

Complainant's Complaint alleges that Respondent, a registered NVOCC, coordinated transportation and logistics services for FormuKleen, arranged inland transportation, advanced freight-related charges, paid port and other charges, directed the handling and delivery of the two subject containers, and withheld the containers or their contents based upon an alleged account balance.

The Presiding Officer denied Complainant's motion for summary judgment without prejudice because additional facts were needed to determine whether Respondent acted as an NVOCC in relation to CHSU4047424 and BSIU8431017, the determination being "fact intensive." The MSJ Order identified with precision the categories of fact that would decide the question: whether Respondent purchased transportation services, paid port-to-port or related charges, entered agreements with underlying shippers, and how Respondent held itself out to the general public. MSJ Order at 7. What followed is a matter of record: Respondent thereafter withheld precisely the categories of documents bearing on those identified facts - the third-party communications, delivery orders, routing records, and charge and payment records. The correspondence between the factual gaps identified in the MSJ Order and the categories of documents Respondent failed to produce is exact, and the resulting evidentiary void is the same void Respondent may seek to have resolved in its favor.

B. The Presiding Officer Rejected Respondent's Scope Objections as "Off-Mark"

RFP No. 4 requires: "All TSS communications with parties other than FormuKleen relating to all FormuKleen shipments managed by TSS, including the subject shipments." RFP No. 7 requires: "All records of duties, drayage, warehousing, storage, port-related, or other charges paid or advanced by TSS on behalf of FormuKleen for any shipment in addition to the subject shipments."

Respondent objected that these requests were overly broad and irrelevant. The Presiding Officer rejected those arguments as "off-mark." April 1 Order at 11. The Presiding Officer held that determining whether an entity acted as an NVOCC is a fact-intensive inquiry and that Respondent's routine practices, historical dealings, third-party communications, advertising, and operational conduct were relevant, stating that "almost any communication between Respondent and any third party is

potentially relevant." *Id.* The scope and relevance of RFP Nos. 4 and 7 are therefore not open questions. They were litigated and decided.

C. The April 1 Order Required Complete Searches, Not a Self-Selected Subset

The April 1 Order required Respondent to submit a declaration from one or more witnesses with first-hand knowledge describing all electronic and physical storage locations, all retention systems, all persons who participated in searches, every electronic and physical search performed, all electronic search terms used, and every repository searched. The Order also required Respondent to confirm that no additional document locations or searches remained. If additional searches, repositories, or terms existed, Respondent was required to complete those searches and make supplemental production by the deadline.

These requirements were imposed because the Presiding Officer was already "greatly concerned" by Respondent's statement that additional records would be produced "assuming they are still available," a statement the Presiding Officer found suggested that Respondent may have spoliated evidence. April 1 Order at 12. Thus, before the present enforcement dispute, the Presiding Officer had already found reason to question Respondent's preservation, recordkeeping, and representations concerning responsive evidence.

D. The May 21 Order Confirmed That Respondent's Searches Had Been Deficient

After Complainant filed its first Motion to Enforce, Respondent filed a Notice of Continued Production stating that, "upon further review" of the April 1 Order, it now understood that it had to produce additional materials. The May 21 Order expressly found that "Respondent all but admits that its document searches to date have been deficient," and that Respondent "essentially states that it did not previously understand its discovery obligations, and acknowledges that its discovery responses have been deficient." May 21 Order at 8. The Presiding Officer further recognized why Complainant may have concluded that efforts to resolve the dispute without intervention were pointless and expressed concern that Respondent may have been engaging in gamesmanship by changing representatives at critical points in discovery. *Id.* The original Motion to Enforce was denied without prejudice based upon the Presiding Officer's view of the conferral record, not because Respondent had complied.

E. The June 5 and July 14 Orders Defined the Present Enforcement Record

On June 5, 2026, the Presiding Officer held Complainant's Renewed Motion to Enforce in abeyance so that the motion could be amended after depositions. The present filing follows that direction and supplies the sworn testimony developed through those depositions.

The July 14 Order then stated that Complainant's allegations concerning obstruction, misleading discovery conduct, and material deposition testimony lacked evidentiary support because the transcripts were not attached. July 14 Order at 6. The Order nevertheless acknowledged that Respondent had failed to produce materials timely and may have engaged in gamesmanship. *Id.* The certified transcripts are now attached. They establish that the principal custodian's mailbox was not searched for production, that core document categories were not searched, and that responsive delivery orders, emails, arrival notices, payment records, hold instructions, and Magaya data existed. The precise evidentiary deficiency identified in the July 14 Order has therefore been cured.

II. RESPONDENT'S OWN WITNESSES ESTABLISHED THAT THE WITHHELD RECORDS EXIST

A. Del Monte Was the Principal Custodian of the Subject-Container Communications

Eddy Del Monte handled the FormuKleen account: "I am the one that handles the account." Del Monte Dep. Tr. 61:13. He was the employee who generated delivery orders, transmitted pickup and delivery authority, communicated with truckers, NVOCCs, carriers' agents, terminals, suppliers, warehouse personnel, and other third parties, and maintained the shipment-level records for both subject containers.

During his deposition, Del Monte did not merely minimize his responsibilities. He stated that his current position was "import brokerage agent," that he held the same position during TSS's relationship with FormuKleen, and that his duties did not include coordinating imports. Del Monte Dep. Tr. 5:9-14, 6:9-12. He twice denied the title flatly. Asked whether he had ever been described as an import coordinator or a distribution lead: "No." Del Monte Dep. Tr. 6:19-21. Asked whether his signature ever said import coordinator or anything else: "No. You have the emails, you, you see what it says." Del Monte Dep. Tr. 7:7-11. Respondent's own contemporaneous and current business records directly contradict those answers. Del Monte's current email signature identifies him as "Import Coordinator," as did his email signature during the period relevant to the subject shipments. More significantly, his July 8, 2026 email, sent thirteen days after his deposition, continues to identify him by

the same title. Exhibit D. This was not a stale or obsolete designation. It remained the title Del Monte used in the ordinary course of business after giving sworn testimony inviting Complainant to check the emails.

Immediately after denying that title, Del Monte admitted that his duties included coordinating container pickup from terminals and coordinating container delivery to customers or warehouses. Del Monte Dep. Tr. 7:13-8:4. That contradiction required no documents at all. Within minutes of denying that his duties included coordinating imports, Del Monte described those duties in his own words. Respondent's effort to characterize the custodian of the subject-container communications as a mere "import brokerage agent" whose work did not involve coordination is refuted by the witness himself, on the same transcript page range, before any exhibit was introduced. Thus, even apart from the title appearing in his own email signature, his sworn testimony establishes that he performed the coordination functions Respondent has attempted to minimize. The title evidence and the duties evidence converge: Del Monte was an obvious and central custodian whose complete mailbox and records were required to be searched under the April 1 Order.

Del Monte was therefore not a peripheral witness. He was the employee who generated, transmitted, received, and maintained the communications and records compelled by RFP No. 4.

B. Magaya Stored the Shipment Records and Delivery Information

Q. Did you use Magaya?

A. Yeah, we use Magaya, of course.

Del Monte Dep. Tr. 16:16-17. "Documents are stored in Magaya and shipment information is, is stored in Magaya." *Del Monte Dep. Tr. 16:18-23.* Del Monte confirmed that Magaya showed delivery destinations when delivery orders were issued. *Del Monte Dep. Tr. 16:24-17:4.* He testified that the delivery order contained the trucker's name, trucker location, pickup location, delivery location, container number, pieces, and weight. *Del Monte Dep. Tr. 18:21-19:20.* He confirmed that Magaya could be searched by customer name and container number. *Del Monte Dep. Tr. 20:2-13.*

These admissions identify a searchable system containing the exact information necessary to determine which trucker received authority, where each container was picked up, where it was directed, whether the destination changed, and which records governed the movement.

C. Pickup Authority and Delivery Instructions Existed in Both Magaya and Email

Q. If TSS gave a trucker pickup authority, where would that normally be recorded?

A. Well, if you generated it through Magaya, it's in Magaya.

Del Monte Dep. Tr. 21:12-15.

Q. If TSS gave a trucker delivery instructions, where would that normally be recorded? A. Again, it would be in Magaya and whatever email you send it on.

Del Monte Dep. Tr. 21:16-19. "[Y]ou generate it in Magaya and then you send it off to the trucker via email." Del Monte Dep. Tr. 21:20-22:1.

Q. If TSS changed where a container was to be delivered, where would that normally be recorded? A. It would probably be in Magaya because a new, a new delivery order would be either generated or amended.

Del Monte Dep. Tr. 22:2-5. This testimony establishes two independent repositories of responsive evidence: the delivery order or amended delivery order in Magaya, and the email transmitting that order and its instructions. Respondent did not produce the complete records from either repository.

D. A Written Delivery Order Existed for Every Container

"There was always a delivery order for every shipment, every container." *Del Monte Dep. Tr. 66:18-22.* For BSIU8431017, Del Monte confirmed that he sent the delivery order to the trucker and that the delivery order constituted the delivery instructions. *Del Monte Dep. Tr. 67:1-2.* He confirmed that the BSIU delivery order was prepared through Magaya. *Del Monte Dep. Tr. 67:16-18.* "Everything is sent via email to the trucker with the delivery instructions and the delivery order." *Del Monte Dep. Tr. 67:19-21.* "Everything was done through email." *Del Monte Dep. Tr. 68:3-6.* "Everything is sent via email. Everything's communicated via email because a trucker wants something in writing stating any changes, if any." *Del Monte Dep. Tr. 69:3-5.* "A delivery order was generated, given to the trucker, and told to bring here." *Del Monte Dep. Tr. 102:1-5.* "Delivery order was generated, given to the trucker, and told to bring here as normal procedure." *Del Monte Dep. Tr. 102:6-10.*

Respondent's own witness therefore established that every subject-container movement generated a written delivery order, that the order was created in Magaya, that it was transmitted by email, that it identified the destination, and that any changed destination would produce an amended record. The complete delivery orders, amended delivery orders, transmission emails, and

accompanying instructions are responsive to RFP No. 4. They were required to be produced. They were not.

E. Del Monte Identified a Broad Network of Third-Party Communications That Were Not Produced

The missing communications are not limited to SeaBlue, and SeaBlue is not the center of the violation. Del Monte identified communications with multiple independent transportation entities whose roles bear directly on the NVOCC inquiry. He testified that he communicated by email with DHY Shipping Line concerning arrival notices, invoices, payments, receipts, and container availability. Del Monte Dep. Tr. 73:24-74:18, 80:13-18. He testified that Dolphin Logistics was Topsealand's United States agent¹, sent arrival notices, and communicated with him by email. Del Monte Dep. Tr. 80:19-81:5. He identified communications with suppliers and iHotel when documents were incomplete or incorrect, terminal systems concerning availability and electronic payment, warehouse manager Sergio concerning arriving containers and packing lists, truckers concerning pickup authority and delivery instructions, and SeaBlue concerning the subject-container delivery orders. Del Monte Dep. Tr. 78:19-82:7. These communications concern the transportation chain itself: arrival, agency relationships, release, payment, pickup authority, routing, delivery, destination, and warehouse receipt.

RFP No. 4 compelled all of those third-party communications, not merely a sample of communications with one trucker. The April 1 Order held that "almost any communication between Respondent and any third party is potentially relevant." Yet the Villena Declaration identified only two third-party email addresses, and Respondent never searched Del Monte's mailbox, the mailbox of the employee who actually sent and received the communications. Any SeaBlue documents Respondent happened to produce do not cure the failure to search for and produce the complete universe of communications with DHY, Dolphin, Topsealand, Qichen, carriers, agents, terminals, suppliers, warehouses, truckers, and the other entities involved in the shipments.

F. Respondent Maintained Underlying Payment, Charge, and Receipt Records

"Everything is in there. Everything's in the file and there's receipts and copies of invoices for everything. And the duties are paid electronically via statement and there's copies of that kept in the file." *Del Monte Dep. Tr. 56:15-20*. "There's a copy of the receipt issued by the port with a container number and a copy of the paid cargo receipt...or a copy of the receipt from the port for the payment,

¹ DragonLink is also identified in the record as a United States agent associated with one of the NVOCCs.

which shows the container number on it and the amount." *Del Monte Dep. Tr. 56:21-57:1*. "They get invoiced for different items. Entry fee, Messenger, ISF, if any of the goods require food and drug clearance. All that is itemized on the invoice. Duties are broken down, delivery, chassis, all those goods that are invoiced and broken down separately on the invoice." *Del Monte Dep. Tr. 57:9-19*. "[A]nything that we pay to another, or that we pay to the port is at face value. Anything that we, any terminal fees at face value." *Del Monte Dep. Tr. 57:20-25*.

These are the exact categories compelled by RFP No. 7. Respondent's own invoices to FormuKleen are not substitutes for the underlying third-party invoices, receipts, payment confirmations, terminal statements, and proofs of advancement.

G. Respondent Advanced Customs Duties and Paid Third-Party Charges for Both Containers

"Duties are due 10 days from the time of the clearance. So, duties are paid within 10 days and FormuKleen was usually invoiced with a 30-day window." *Del Monte Dep. Tr. 58:13-17*.

Q. For this specific container, yes, you paid duties, you advanced or guaranteed and paid duties or fees for CHSU, yes or no? A. Yes.

Del Monte Dep. Tr. 59:2-5. For BSIU8431017, TSS paid the terminal fee to the port and outstanding fees to the U.S. co-loader, Qichen Logistics. *Del Monte Dep. Tr. 69:18-71:21*. Asked whether, based on his work on CHSU4047424, TSS arranged or coordinated inland transportation: "Yes, from the port to the warehouse." *Del Monte Dep. Tr. 108:3-16*. Asked whether TSS paid, advanced, fronted, guaranteed, accepted responsibility for, or billed charges connected to the container: "Yes. We paid terminal fees to the port and any outstanding fees to the U.S. co-[loader] broker or forwarder." *Del Monte Dep. Tr. 108:17-109:14*. This testimony establishes both that responsive RFP No. 7 records existed and that those records bear directly on functions identified in 46 C.F.R. § 515.2(k).

H. Respondent Holds Itself Out Publicly as Offering NVOCC and Freight Forwarding Services

Asked whether TSS advertises or describes its services as freight forwarding, NVOCC services, or import handling, Del Monte testified: "That's on our public webpage, we offer that service." *Del Monte Dep. Tr. 28:15-19*. The MSJ Order identified holding-out evidence - "how Respondent holds itself out as an NVOCC, e.g....advertising" - as one of the specific missing categories of fact. MSJ Order at 7. Respondent's own witness supplied it.

I. The Third-Party Communications Were Never Given to FormuKleen

Del Monte confirmed that FormuKleen was not a party to the third-party communications: "Most of the time, FormuKleen wasn't copied on a lot of emails." *Del Monte Dep. Tr. 118:2-4*. When he communicates with the terminal to pay a fee, "no, I don't include them," and when he contacts the trucker, FormuKleen is notified "on a separate email." *Del Monte Dep. Tr. 84:19-85:8*. He was then asked directly:

Q. So, the third-party communications that FormuKleen was not a part of, were those emails given to FormuKleen at any time either previously or when required for this case? Yes or no, is it yes or a no?

A. I did not do it, no.

Del Monte Dep. Tr. 121:8-12. And asked whether it was plausible that TSS acted as a warehouse, facilitated trucking, and participated in customs clearance without one third-party email: "Of course there are emails...There's my email telling the driver to pick up the container at the port and to bring it to the warehouse. There's the [ABI] communications with U.S. Customs for that particular entry...and then...I also let my warehouse know what's coming by sending them a copy of the packing list and the delivery order." *Del Monte Dep. Tr. 119:13-120:5*. "Emails are accessible." *Del Monte Dep. Tr. 120:6-11*. The documents exist. They are accessible. They were compelled. They were never produced.

III. RESPONDENT'S PRINCIPAL CUSTODIAN TESTIFIED THAT THE ORDERED SEARCHES WERE NOT PERFORMED

A. Del Monte's Mailbox Was Not Searched to Collect Responsive Communications

Q. Did, were your emails searched by anybody at TSS for third-party communications in relation to this case, yes or no?

A. Well, they were not searched.

Del Monte Dep. Tr. 86:1-5.

Q. So, nobody at TSS went through your emails in order to collect them to give them to FormuKleen, correct?

A. Yes.

Del Monte Dep. Tr. 87:3-6. That admission independently establishes noncompliance.

Respondent was ordered to produce all third-party communications. Del Monte was the employee who sent and received those communications. Respondent did not search his mailbox to collect them for production. Respondent cannot claim that Del Monte was an obscure custodian it reasonably overlooked. Del Monte identified himself as one of four people TSS listed for this case: "Ricky, myself, Isaac, Mr. Defreitas." *Del Monte Dep. Tr. 90:23-91:1.* Respondent identified him as a custodian and still never searched his records.

B. Other Devices and Communications Were Not Searched

Del Monte testified that his text messages were not searched (*Del Monte Dep. Tr. 87:7-16*), his WhatsApp was not searched (*Del Monte Dep. Tr. 87:17-18*), and his phone was not searched (*Del Monte Dep. Tr. 87:19-20*). "No, nobody searched, nobody searched my emails to see what I did." *Del Monte Dep. Tr. 88:6-11.*

C. Delivery Orders, Arrival Notices, Trucker Communications, and Del Monte's Records Were Not Searched

"Everything was just reviewed and nothing, nobody searched anything." *Del Monte Dep. Tr. 88:17-19.* Asked whether anyone searched arrival notices, Del Monte answered no. *Del Monte Dep. Tr. 89:5-8.* Asked whether anyone searched trucker communications, he answered no. *Del Monte Dep. Tr. 89:9-11.* Asked who searched his records for discovery, he answered, "Nobody did." *Del Monte Dep. Tr. 89:17-21.*

D. No Meaningful Search Parameters Were Identified

"Nobody, nobody here has searched anything." *Del Monte Dep. Tr. 90:10-12.* Asked what search terms were used: "Email." *Del Monte Dep. Tr. 90:13-18.* "No heavy investigation was, you know, nobody has dug around my email. Nobody went into my computer." *Del Monte Dep. Tr. 90:18-20.* This does not describe a search reasonably calculated to locate all third-party communications. It describes the absence of the search required by the April 1 Order.

IV. RESPONDENT'S OWN EVIDENCE CANNOT BE RECONCILED

Respondent Position	Respondent's Own Contrary Evidence	Necessary Conclusion
There are no additional document locations to be searched, nor searches to be performed. Villena Decl. ¶ 17.	Nobody at TSS went through Del Monte's emails to collect third-party communications for FormuKleen. Del	The declaration's completion representation is false or materially

Respondent Position	Respondent's Own Contrary Evidence	Necessary Conclusion
Respondent represented that it conducted the searches required by the April 1 Order.	Monte Dep. Tr. 87:3-6. Del Monte's emails were not searched for third-party communications. Del Monte Dep. Tr. 86:1-5.	inaccurate. The principal custodian was not searched.
Respondent represented that responsive communications had been collected and produced.	Nobody searched Del Monte's emails to see what he did, and the third-party emails were never given to FormuKleen. Del Monte Dep. Tr. 88:6-11, 121:8-12.	The production could not have been complete.
Respondent relied on generalized verbal communications to explain missing records.	Every container had a delivery order, and everything was sent by email. Del Monte Dep. Tr. 66:18-22, 67:19-21, 69:3-5.	Written responsive records necessarily existed.
Respondent asserted that no additional responsive records existed.	Delivery orders, arrival notices, NVOCC and agent communications, trucker communications, terminal receipts, invoices, and duty statements existed and were accessible. Del Monte Dep. Tr. 56:15-57:1, 66:18-69:11, 73:24-82:7, 119:13-120:11.	Respondent's no-additional-documents position is disproven.
Respondent later claimed it performed an additional targeted review.	Paragraph 17 had already sworn that no additional searches remained; as of June 25, "[n]obody here has searched anything." Del Monte Dep. Tr. 90:10-12.	Respondent's own later conduct contradicts its declaration.
Del Monte testified that his duties did not include coordinating imports. Del Monte Dep. Tr. 6:9-12.	Minutes later, Del Monte admitted his duties included coordinating container pickup from terminals and coordinating container delivery to customers and warehouses. Del Monte Dep. Tr. 7:13-8:4.	Respondent's own witness contradicted himself within the same deposition on the central question of his role.
Del Monte denied that he had been described as Import Coordinator and denied that his signature used that title, stating, "You have the emails, you, you see what it says." Del Monte Dep. Tr. 6:19-7:11.	Del Monte's November 25, 2024 and July 8, 2026 emails identify him as "Import Coordinator"; the July 8 email was sent thirteen days after his deposition. Exhibit D.	Respondent's principal custodian gave sworn testimony directly contradicted by Respondent's own contemporaneous and current business records.
Respondent represented that it requested a neutral, independent interpreter and that Complainant denied the request. Respondent's July 13 Opposition at 4.	The June 13 email requested only "a Spanish translator." It did not request a neutral, independent, or certified interpreter, and Complainant did not prohibit Respondent from providing one. Exhibit C.	Respondent materially mischaracterized the contemporaneous correspondence in a filing seeking substantive relief.
Respondent identified Del Monte as one of	Nobody searched his emails, texts,	Respondent failed to search a custodian it

Respondent Position	Respondent's Own Contrary Evidence	Necessary Conclusion
four custodians for this case. Del Monte Dep. Tr. 90:23-91:1.	WhatsApp, phone, dispatch records, delivery orders, arrival notices, or trucker communications. Del Monte Dep. Tr. 86:1-5, 87:3-20, 88:6-19, 89:5-21.	had itself identified.

The certified transcript of Ricky Villena's deposition has not yet been received.² The contemporaneous transcript reflects that Villena testified that he personally went to each employee, had the employee conduct searches next to him, observed how the searches were performed, and directed the employee to search different subject matters to ensure responsive communications were captured. Asked whether he sat next to the employees and watched, Villena confirmed that he did so when the searches began, "just to make sure that they do it right."

That account cannot be reconciled with Del Monte's certified testimony that nobody searched his emails, his records, his delivery orders, his arrival notices, or his trucker communications, and that "[n]obody, nobody here has searched anything." Del Monte Dep. Tr. 89:17-21, 90:10-12. The declarant who swore that no searches remained has now testified that he personally supervised searches that the custodian says never occurred. Complainant will supplement promptly upon receipt of the certified transcript.

The conflict is not semantic. The April 1 Order required Respondent to identify every search and confirm that no others remained. Respondent gave that confirmation. The employee who possessed the responsive records testified that the required searches were not performed. Both accounts cannot be true.

Respondent cannot avoid that contradiction by arguing that Del Monte lacked knowledge of what another person may have done. The relevant question was whether anybody searched his mailbox to collect his communications for production. He answered that nobody did. He also testified that nobody searched his records, arrival notices, trucker communications, or delivery orders. The declaration has therefore been disproven by Respondent's own sworn testimony.

² The quoted testimony is drawn from the contemporaneous Zoom-generated transcript of Ricky Villena's deposition. Complainant does not ask the Presiding Officer to rely upon it as certified testimony and will supplement upon receipt of the certified transcript. It is offered to alert the Presiding Officer that a direct conflict exists between Respondent's principals' sworn accounts and is in the process of verification. The contradictions established by the certified Del Monte transcript do not depend upon it.

V. RESPONDENT'S VERBAL-COMMUNICATION EXCUSE HAS BEEN DISPROVEN

Respondent repeatedly invoked verbal communications as an explanation for absent records. Villena Decl. ¶ 16. Its own employees eliminated that excuse. Del Monte testified that every container had a delivery order, that the delivery order was generated in Magaya, that it was transmitted to the trucker by email, that truckers required changes in writing, and that a trucker would not pick up or deliver an international container without a written delivery order. Del Monte Dep. Tr. 52:10-20, 66:18-69:11. Sarmiento testified the same from the warehouse side: every communication with the trucking company is by email, an address change on a trucker's bill of lading is communicated to the trucking company by email, and the bill of lading would be revised - so "there would be the original version and there would be the new version of the bill of lading." "Correct. Yes." Sarmiento Dep. Tr. 53:2-55:18.

Respondent cannot continue arguing that the records may never have existed. Its own witnesses established that written delivery orders existed for every container, that delivery instructions and changes were communicated electronically, and that destination changes generate paired original and revised documents. The containers did not move, and were not held, on undocumented conversation.

VI. SARMIENTO'S TESTIMONY INDEPENDENTLY CONFIRMS THE HOLD RECORDS, THE HOLD DECISION, AND THE DENIAL OF ACCESS - ALL IN EMAIL, ALL IN OUTLOOK, ALL UNPRODUCED

Isaac Sarmiento was and is Respondent's distribution lead. Sarmiento Dep. Tr. 6:14-7:6. He received cargo at the warehouse, entered information into Respondent's systems, processed orders, and participated in release of orders to customers. His testimony corroborates Del Monte's from the opposite end of the same operation, and it adds the hold and access records that go to the heart of Complainant's claims:

TSS placed FormuKleen cargo on hold, tied to the account balance. Asked whether TSS placed any FormuKleen cargo on hold: "Yes." *Sarmiento Dep. Tr. 34:2-8*. Asked whether the hold was tied to FormuKleen's payment balances: "Yes." *Sarmiento Dep. Tr. 36:19-22*. Del Monte separately admitted both containers: TSS placed CHSU4047424 on hold - "Yes" - and BSIU8431017 on hold - "Yes, there were outstanding accounting issues." *Del Monte Dep. Tr. 95:3-20*.

FormuKleen was denied access to its own cargo based on the balance. "I know that there was a balance." "Q. So, the answer is yes? A. Yes." *Sarmiento Dep. Tr. 25:9-28:23*.

The hold decision was made and approved at the top. The decision to hold containers was made by the finance department and "upper management" - identified as Vice President Ricky Villena and President Jose DeFreitas - and the hold was approved by "Ricky. Ricky Villena." *Sarmiento Dep. Tr. 35:10-36:7.*

The hold instruction is a written email from Mr. Villena, and the warehouse hold record exists only in email. Asked where the written hold instruction is: "the communication is by email and Ricky told us that by email." *Sarmiento Dep. Tr. 37:9-25.* Asked where the warehouse hold record is: "No, just by email." *Sarmiento Dep. Tr. 37:15-18.* The hold instructions were received by customer service, the distribution department, and the warehouse manager, Sergio Rabelo. *Sarmiento Dep. Tr. 37:19-25.* Sarmiento recalled the substance: "put the cargo on hold, there are ...pending balance and...then pay...to the TSS and then...release the cargo." *Sarmiento Dep. Tr. 38:9-17.*

The routing, diversion, and hold-authorization records are in Outlook. Asked whether TSS would have a record showing who authorized cargo redirected or diverted from its intended destination to TSS: "TSS has the record in Outlook." *Sarmiento Dep. Tr. 33:1-21.* Asked whether TSS would have a record of who instructed or authorized a hold or access restriction: "Yeah. TSS has the...record in Outlook." *Sarmiento Dep. Tr. 33:21-34:1.*

The hold practice is account-wide and systemic. Sarmiento testified that when TSS imposes a hold, the account is held and no cargo is released - including containers for which no money is owed: TSS "would hold FormuKleen's new containers for the debts of the old containers." "Yes." *Sarmiento Dep. Tr. 60:11-61:17.* And it is a practice: "Yes, we, we, we did it in the past with the other customer." *Sarmiento Dep. Tr. 60:1-7.*

Villena possesses the complete communications. Asked who at TSS would know what third-party communications existed and what was produced in discovery: "Ricky Villena...has the...case and he has in the copy in communication, every communication." *Sarmiento Dep. Tr. 39:4-24.* He identified Del Monte and the import department as the persons who would know the shipment documents and third-party communications. *Sarmiento Dep. Tr. 38:19-39:3.*

Sarmiento also authenticated a November 14, 2024 email, subject line "Scheduled Meeting with My Partner," on which he, Mr. Villena, and other TSS employees were copied, and read its text into the record: "You are holding 1M worth of inventory hostage for a debt of 49,000?...I will be put in a position where I can't pay down the debt if you hold my entire [inventory]." *Sarmiento Dep. Tr. 46:9-*

49:6. He confirmed his email address appears on the message and that the recipients were TSS employees. *Sarmiento Dep. Tr. 47:8-12, 49:1-6. The email*, its thread, and the surrounding hold and release correspondence are squarely responsive. They have not been produced in complete form.

The two witnesses converge. The import side generated and emailed the delivery orders, trucker instructions, carrier and agent communications, and terminal payments. The distribution side received and holds the emailed hold instructions from Mr. Villena. Both sides locate the records in TSS's Outlook and Magaya systems - the exact systems the Villena Declaration identified as containing the records for "each and every shipment handled by TSS." Villena Decl. ¶¶ 6-7.

VII. THE WITHHELD RECORDS GO DIRECTLY TO THE CENTRAL NVOCC ISSUE

The April 1 Order identified the governing inquiry. Whether Respondent acted as an NVOCC is fact-intensive. Documentary labels and the absence of a TSS-issued bill of lading are not dispositive. Services identified in 46 C.F.R. § 515.2(k) include payment of multimodal transportation charges, issuing shipping documents, assisting with customs clearance, arranging inland transportation, paying inland freight charges, coordinating movement between origin or destination and vessel, entering arrangements with destination agents, and collecting freight monies and paying carriers.

The deposition testimony establishes that TSS assisted with customs clearance, monitored terminal availability, generated delivery orders, transmitted written pickup and delivery authority, coordinated inland movement from the port to the warehouse, communicated with NVOCCs, carriers' agents, co-loaders, terminals, suppliers, warehouses, and truckers, advanced customs duties, paid terminal, co-loader, and trucking charges, invoiced FormuKleen for those charges, advertised freight forwarding and NVOCC services, directed the containers to TSS's warehouse, placed both subject containers on hold, and controlled release based upon FormuKleen's account balance. Those functions are not established primarily by cherry-picked SeaBlue dispatch emails. They are established by the full network of communications among TSS and the NVOCCs, agents, carriers, terminals, co-loaders, suppliers, warehouse personnel, and other transportation entities through which TSS obtained arrival information, paid charges, coordinated release, directed inland movement, and managed delivery.

Del Monte further testified that "[a]ll FormuKleen containers were delivered to TSS warehouse" and that he "was never told to deliver anything to FormuKleen's warehouse." Del Monte Dep. Tr. 102:11-103:9. Whether that account is true, and on whose instruction the subject containers went to TSS's own facility rather than to FormuKleen, is knowable from exactly one place: the delivery orders,

amended delivery orders, transmission emails, and Magaya records TSS created - records Del Monte says exist and are accessible, Sarmiento says are in Outlook, and TSS has never produced.

The most probative withheld records are Respondent's communications with DHY Shipping Line, Dolphin Logistics, Topsealand, Ningbo Qichen, carriers, agents, terminals, suppliers, warehouse personnel, truckers, and the other transportation entities involved in the shipments. Those records would establish the role TSS actually performed in the transportation chain: who supplied arrival and release information, who invoiced whom, what charges TSS paid or advanced, what agency relationships existed, who authorized pickup and routing, who selected or changed the destination, what delivery order governed each movement, who imposed the hold, who controlled release, and whether TSS assumed operational responsibility. SeaBlue is one part of that chain, not the scope of the dispute. Respondent cannot withhold the broader communications needed to answer the precise NVOCC questions the Presiding Officer identified and then rely upon the resulting absence of evidence.

VIII. RESPONDENT'S NONCOMPLIANCE MATERIALLY PREJUDICED COMPLAINANT

A. Complainant Was Forced to Use Depositions to Prove That Compelled Documents Existed

Complainant should have received the compelled documents in April. Instead, Complainant was forced to depose Respondent's employees in late June to prove that the records existed, the records were maintained electronically, the systems were searchable, specific third-party communications occurred, delivery orders existed for every container, hold instructions existed in email, payment records existed, and the principal custodian's mailbox was not searched. The depositions should have been conducted using the complete production. They instead had to be used to discover the production's deficiencies.

B. Complainant Was Deprived of the Records Needed to Examine Respondent's Witnesses

Because Respondent did not produce the records, Complainant could not examine the witnesses using the complete delivery orders and amended delivery orders; the Magaya files and audit history; communications with DHY, Dolphin, Topsealand, Qichen, carriers, agents, terminals, suppliers, warehouses, truckers, and other third parties; arrival notices and invoices; payment and release communications; warehouse notification emails; the emailed cargo-hold and release instructions from Mr. Villena; terminal receipts and third-party invoices; customs-duty statements; or internal communications involving Villena. Respondent's noncompliance therefore impaired the depositions

themselves and prevented Complainant from examining how TSS coordinated with the other NVOCCs and entities in the transportation chain.

C. Respondent Consumed the Discovery Period Through Noncompliance

Respondent received additional time to comply. It produced deficient materials, changed representatives at critical times, asserted that its production was complete, filed a Notice of Continued Production only after Complainant moved to enforce, stated that it had re-read the April 1 Order, promised another targeted search, failed to cure the missing communications, failed to cure redactions after offering to do so, failed to identify the promised Bates ranges, and permitted discovery to close while the Order remained unsatisfied. Respondent should not be permitted to consume the discovery period through noncompliance and then invoke the expiration of discovery as protection from the consequences of that noncompliance.

D. The July 14 Order's Evidentiary Concern Has Now Been Fully Cured

The July 14 Order stated that Complainant had not supported its allegations with deposition transcripts or other evidence. Complainant respectfully disagrees that a motion to extend discovery is the appropriate mechanism for presenting deposition evidence, and preserves its objection to the July 14 Order's denial of that motion; in any event, the omission the Order identified has now been cured in the vehicle the June 5 Order designated for it. The transcripts demonstrate that the prejudice was not hypothetical. Complainant was denied access to central operational records before discovery closed and before the relevant witnesses were examined. Respondent should not obtain an advantage because Complainant initially relied upon Respondent to obey the Commission's Order.

E. Each Withheld Category Caused a Specific Litigation Harm

The prejudice is document-specific, not abstract. The missing delivery orders and amended delivery orders prevented Complainant from confronting the witnesses with the written routing instructions and determining whether the destination changed. The missing transmission emails prevented Complainant from establishing who authorized pickup, who selected the destination, and what instructions the transportation entities actually received. More fundamentally, the missing communications with DHY, Dolphin, Topsealand, Qichen, carriers, agents, terminals, suppliers, warehouses, truckers, and other third parties prevented Complainant from reconstructing TSS's actual role in the transportation chain, the very factual question for which discovery was ordered.

The missing Magaya files and audit history prevented Complainant from determining when records were created, altered, or amended, which user made those changes, and whether the shipment destination or release status changed. The missing DHY and Dolphin communications prevented Complainant from examining the witnesses concerning the arrival notices, invoices, agency relationships, and payment communications they identified under oath. The missing hold and release emails - which Sarmiento testified came from Mr. Villena and exist only in email - prevented Complainant from testing who ordered the cargo hold, who controlled release, and confirming through documents that the hold was imposed across FormuKleen's account rather than shipment by shipment, as Sarmiento admitted.

The missing terminal receipts, customs-duty statements, third-party invoices, and payment confirmations prevented Complainant from proving the precise charges Respondent paid or advanced, even though those payments bear directly on the NVOCC functions identified by the April 1 Order. Because these records were withheld until after the depositions and the close of discovery, the prejudice cannot be cured merely by ordering production without additional relief. Production must be accompanied by appropriate evidentiary consequences, reopening and extension of discovery, and an adjustment of the remaining deadlines sufficient to permit meaningful use of the belated evidence.

IX. COMPLAINANT HAS BEEN FORCED TO CHASE ENFORCEMENT OF AN ISSUE ALREADY LITIGATED AND DECIDED

The relevance and scope of RFP Nos. 4 and 7 were litigated. Respondent objected. Complainant moved to compel. Respondent opposed. The Presiding Officer ruled. Respondent's objections were rejected. Production was ordered. That should have ended the dispute over whether Respondent was required to produce these materials.

Instead, Complainant has been required to identify the missing categories, identify the missing entities, identify the inadequate two-address search, request Bates-range identification, request supplementation, confer before the original motion, file the original Motion to Enforce, confer again after the May 21 Order, attend a hearing, accept Respondent's proposed redaction cure, document Respondent's failure to perform that cure, file the Renewed Motion to Enforce, conduct depositions, prove the records existed, prove the repositories existed, prove the principal custodian was not searched, and attach the certified transcripts. Complainant should not have to litigate the same production obligation a third time.

The April 1 Order resolved Respondent's objections and imposed affirmative discovery obligations. Once Respondent failed to comply, the Order required enforcement. Complainant should not have been required to identify each missing custodian, each missing repository, and each missing category of records, depose Respondent's employees to prove that the ordered searches were never performed, and return repeatedly seeking enforcement of an order that had already been entered. Rule 150 exists precisely because discovery orders are not self-executing suggestions. They are binding directives that must be enforced when violated. If Respondent may ignore the Order, provide a declaration contradicted by its own employees and records, run out the discovery period, and receive only another consequence-free opportunity to search, the Order becomes functionally optional. That result would further prejudice Complainant and undermine the Commission's own authority.

X. RESPONDENT'S BELATED DEPOSITION COMPLAINTS DO NOT EXCUSE NONCOMPLIANCE

Respondent raised generalized concerns regarding the depositions in its opposition to Complainant's motion to extend discovery. Those complaints do not answer the evidence.

Both depositions were conducted remotely by agreement, before a certified electronic reporter and notary public. Del Monte Dep. Tr. 4:2-24; Sarmiento Dep. Tr. 4:2-5:13. Respondent had notice and the opportunity to attend through counsel or another representative, make objections, clarify testimony, protect its witnesses, or raise procedural concerns contemporaneously. Respondent chose not to appear. Respondent cannot decline to attend its own employees' depositions, raise no contemporaneous objection, and then attempt to erase sworn testimony after it exposes Respondent's discovery failures.

Del Monte testified directly in English. The dispositive admissions concerning Magaya, delivery orders, email transmissions, third-party communications, payment records, the public webpage, the holds, and the failure to search his mailbox came from Del Monte himself. Sarmiento likewise testified under oath, and his dispositive admissions - "TSS has the record in Outlook," the hold instruction came "by email and Ricky told us that by email," the warehouse hold record is "just by email," and his "Yes" answers on the holds and denial of access - were given by the witness directly in English. Where Sarmiento requested language assistance, questions or answers were repeated on the record to ensure the transcript reflected his testimony, the court reporter administered the oath and recorded the proceedings, and the witness was offered errata review, including in Spanish. Sarmiento Dep. Tr. 63:1-65:7.

Most importantly, no complaint concerning Sarmiento's deposition affects Del Monte's unequivocal testimony that every container had a delivery order, everything was sent by email, changed instructions were placed in writing, his mailbox was not searched for production, arrival notices were not searched, trucker communications were not searched, and nobody searched his records for discovery.

XI. RESPONDENT MADE A MATERIALLY FALSE REPRESENTATION TO THE COMMISSION REGARDING THE INTERPRETER REQUEST

Respondent's Opposition to Complainant's Motion to Extend Discovery did not merely criticize the manner in which language assistance was provided. It made a specific factual representation to the Commission about what Respondent had requested before the depositions and what Complainant had supposedly denied.

Respondent represented: "Respondent requested the use of a neutral, independent Spanish interpreter prior to the depositions. That request was denied." Respondent's Opposition to Complainant's Motion to Extend Discovery and Remaining Deadlines at 4. Respondent then argued that a "neutral, certified interpreter" should have been used and asked the Presiding Officer to strike the testimony or require the depositions to be retaken. *Id.* at 5.

The contemporaneous written record proves that Respondent did not make the request it described to the Commission. Villena's June 13, 2026 email stated only: "Please note that Jose Luis De Freitas and Isaac Sarmiento will require a Spanish translator for their depositions." Exhibit C. The email did not request a neutral interpreter. It did not request an independent interpreter. It did not request a certified interpreter. It did not ask permission for Respondent to retain or provide its own interpreter. It simply announced that the witnesses "will require a Spanish translator."

Complainant responded that it would not "arrange, provide, or pay for Spanish interpreters" and that the asserted need for an interpreter would not justify delaying or rescheduling the depositions. Exhibit C. Complainant did not prohibit Respondent from retaining its own interpreter, did not deny Respondent permission to provide one, and did not reject any request for a neutral, independent, or certified interpreter, because no such request had been made. Villena's follow-up email again referred only to the witnesses' asserted level of English proficiency and stated that Respondent's comments were intended to ensure that the witnesses understood the questions. It still did not request a neutral,

independent, or certified interpreter and did not state that Respondent intended to provide one. Exhibit C.

Respondent therefore converted an email stating that two witnesses "will require a Spanish translator" into a representation that Respondent requested a "neutral, independent" interpreter and that Complainant denied that request. The contemporaneous email establishes that the representation was materially false.

The misrepresentation was material because Respondent used it to attack the integrity of the depositions, characterize Complainant's conduct as unfair and intimidating, seek exclusion of sworn testimony, and request that the depositions be repeated. Respondent sought substantive relief from the Commission based upon a request the written record shows it never made.

This is not an isolated discrepancy. It follows the same pattern as the Villena Declaration and Mr. Del Monte's denial of his own email signature: Respondent makes a categorical representation to the Commission, and the objective record later disproves it. The Presiding Officer should reject Respondent's procedural attack, deny its request to strike or retake the depositions, and consider the misrepresentation in evaluating Respondent's credibility, good faith, and the appropriate sanctions.

XII. LESSER MEASURES HAVE FAILED, AND THE RULE 150(b) REMEDIES MUST BE ADDRESSED INDEPENDENTLY

Commission Rule 150(b) authorizes the Presiding Officer to deem facts established, prohibit the disobedient party from supporting or opposing claims or defenses or introducing designated matters into evidence, strike pleadings, stay proceedings until compliance, dismiss the proceeding, or render a decision by default. 46 C.F.R. § 502.150(b)(1)-(3).

Lesser measures have already failed. Respondent was ordered to produce, received additional time, submitted a declaration, acknowledged that its searches were deficient, promised continued production, promised an additional targeted review, and claimed complete production. Its principal custodian then testified that the ordered searches were not performed. A further consequence-free direction to search would reward the same conduct that caused the present prejudice. The requested remedies are therefore presented independently and in graduated form. Denial of the most severe remedy would not justify denial of the narrower remedies necessary to enforce the April 1 Order and prevent Respondent from benefiting from its violation.

A. First-Level Relief: Immediate Production and Preservation. At an absolute minimum, Respondent must be ordered to complete production within five calendar days, preserve all potentially responsive evidence, identify the Bates ranges it contends satisfy the Order, produce a privilege log for any withheld material, and provide unredacted documents under the Protective Order or for in camera review.

B. Second-Level Relief: A Corrected, First-Hand Sworn Declaration. Independent of production, Respondent must be required to submit a corrected declaration from Villena and a person with direct technical knowledge that identifies every custodian, repository, query, search term, date range, and document category searched and explains the contradictions between paragraph 17, Respondent's later targeted review, and Del Monte's testimony.

C. Third-Level Relief: Evidentiary Preclusion. Respondent should be precluded from using any responsive evidence not timely produced and from relying upon the absence of records it failed to search for or produce. Respondent should not be permitted to create an evidentiary gap and then use that gap as a defense.

D. Fourth-Level Relief: Adverse Inferences. The Presiding Officer should infer that the withheld records would show that TSS arranged and controlled inland transportation, generated written delivery authority, directed delivery to its warehouse, paid or advanced transportation-related charges, imposed or enforced cargo holds based upon FormuKleen's account balance, and acted consistently with an NVOCC or transportation intermediary.

E. Fifth-Level Relief: Facts Deemed Established. Because the withheld records concern the very factual issues for which discovery was ordered, the Presiding Officer should deem established the underlying operational facts proved by the testimony and frustrated by the nonproduction. If the Presiding Officer declines to deem NVOCC status itself established, the narrower operational facts should nevertheless be deemed established under Rule 150(b)(1).

F. Sixth-Level Relief: Reopening and Extension of Discovery and Adjustment of Deadlines. Because the ordered documents were withheld before the depositions and the discovery cutoff, the discovery period should be reopened and extended as described in Section XIV, with the remaining deadlines adjusted accordingly.

G. Seventh-Level Relief: Costs and Any Additional Sanction Necessary to Cure the Violation.

Respondent should bear the reasonable enforcement-related costs and the reasonable costs caused by its noncompliance, including costs associated with the reopened discovery period, to the extent authorized, together with any additional sanction necessary to ensure that Respondent does not profit from disobedience of the April 1 Order.

XIII. THE REQUIRED PRODUCTION AND CORRECTED DECLARATION

Respondent should be ordered, within five calendar days, to produce the following:

A. Third-Party Communications

- All third-party communications concerning CHSU4047424 and BSIU8431017 with CMA CGM, DHY Shipping Line, Ningbo Qichen, Topsealand, Dolphin Logistics, SeaBlue Freight Container (including Greta and Yami), South Florida Container Terminal, Pomtoc, any other terminal, iHotel, suppliers, exporters, manufacturers, warehouse personnel, truckers, drayage vendors, carriers, NVOCCs, agents, customs providers, and transportation entities.
- All internal TSS communications concerning the subject containers, routing, delivery, payment, holds, access, release, diversion, destination, or account balance, including the emailed hold instructions from Ricky Villena identified at Sarmiento Dep. Tr. 37:9-25 and the November 14, 2024 "Scheduled Meeting with My Partner" thread identified at Sarmiento Dep. Tr. 46:9-49:6.
- All communications involving Ricky Villena, Eddy Del Monte, Isaac Sarmiento, Sergio Rabelo, or any other relevant custodian.

B. Delivery, Routing, and Magaya Records

- All delivery orders and amended delivery orders.
- All pickup authorizations and delivery instructions.
- All dispatch, routing, arrival, terminal, warehouse, destination-change, hold, and release records.
- All emails transmitting or discussing those records.
- The complete Magaya files and audit histories for both subject containers, including the IMP-prefixed reference files identified at Del Monte Dep. Tr. 66:9-17, all documents, attachments,

notes, user activity, generated records, customer data, vendor data, trucker data, pickup and delivery locations, and change history.

C. RFP No. 7 Records

- All third-party invoices, terminal receipts, payment confirmations, customs-duty statements, drayage invoices, delivery invoices, chassis charges, warehouse charges, storage charges, co-loader charges, port-related charges, carrier charges, account statements, proofs of payment, proofs of advancement, credits, and corresponding system entries.

D. Corrected Sworn Declaration

Respondent should submit a corrected declaration from Villena and a person with direct technical knowledge identifying:

- Every custodian, account, mailbox, shared mailbox, system, computer, archive, and backup searched.
- Every Magaya query performed, every search term used, and every date range applied.
- Whether sent, received, deleted, archived, forwarded, attachment, and backup materials were searched.
- Whether the complete mailboxes of Del Monte, Sarmiento, Villena, and Rabelo were searched.
- Whether delivery orders, amended delivery orders, arrival notices, trucker communications, warehouse communications, terminal communications, hold and release communications, payment records, and charge records were searched.
- Whether any responsive evidence was deleted, destroyed, lost, unavailable, or not preserved.
- Why paragraph 17 stated that no additional searches remained.
- Why Respondent later claimed to conduct an additional targeted review.
- Why Del Monte testified that his mailbox and records were not searched for production.

XIV. RESPONDENT'S NONCOMPLIANCE REQUIRES REOPENING AND EXTENSION OF DISCOVERY

Footnote 3 of the July 14 Order recognizes that additional discovery may be permitted if Complainant's Renewed Motion to Enforce is successful. Respondent's noncompliance has now been

established through sworn testimony. Respondent represented that its production was complete and that no additional searches remained, while failing to search the principal custodian, failing to search identified repositories, and failing to produce categories of responsive evidence that its own witnesses confirmed exist.

Complainant conducted discovery in reliance upon Respondent's sworn representations and purported completion of production. Because those representations were materially inaccurate, Complainant was deprived of the opportunity to evaluate the complete evidentiary record, pursue discovery arising from that record, test Respondent's factual positions, and develop its claims before the discovery deadline expired. The resulting prejudice is not confined to a single document category, witness, repository, or line of inquiry. The withheld evidence concerns Respondent's communications, operations, payment practices, routing decisions, shipment records, internal instructions, third-party relationships, and conduct concerning the subject shipments and FormuKleen generally.

A narrowly confined period of "follow-up" discovery would not restore Complainant to the position it would have occupied had Respondent complied with the April 1 Order when required. Complainant cannot reasonably be required to identify in advance every discovery need that may arise from documents Respondent has still not produced. The scope of necessary discovery will depend upon the content of the compelled production, the identities and roles revealed by that production, the repositories and communications disclosed, and the extent to which the production contradicts or supplements Respondent's prior discovery responses and sworn testimony.

Accordingly, the discovery period should be reopened and extended for a sufficient period after Respondent completes the ordered production and serves a corrected sworn declaration. During that period, Complainant should be permitted to pursue discovery authorized by the Commission's Rules as reasonably necessary to develop the record, cure the prejudice caused by Respondent's noncompliance, and prepare the case for decision. The remaining deadlines should be adjusted accordingly so that Complainant has a meaningful opportunity to review the compelled production, conduct necessary discovery, and use the resulting evidence.

This is not a request for a second opportunity to pursue discovery that Complainant neglected. It is a request to restore the discovery opportunity Respondent prevented by representing that its searches and production were complete when they were not. Respondent should not be permitted to consume the

discovery period through noncompliance and then use the expired deadline to restrict Complainant's ability to develop the evidence Respondent was ordered to produce.

XV. EXPRESS FINDINGS ARE REQUESTED ON EACH MATERIAL ISSUE AND EACH INDEPENDENT REMEDY

Complainant respectfully requests express findings on each of the following issues rather than a generalized disposition of the motion:

- Whether Respondent complied with the April 1 Order;
- Whether the Villena Declaration can be reconciled with Respondent's deposition testimony and later conduct;
- Whether Respondent's noncompliance materially prejudiced Complainant; and
- Which remedies under Rule 150(b), including reopening and extension of discovery, are necessary to cure that prejudice.

If the Presiding Officer denies any requested remedy, Complainant respectfully requests an explanation of the factual and legal basis for that decision. Each remedy is requested separately, and denial of one does not eliminate the need to consider the others.

XVI. PRESERVATION OF OBJECTIONS

Complainant respectfully preserves all objections arising from Respondent's noncompliance, the handling of the enforcement proceedings, the July 14, 2026 denial of Complainant's motion to extend, the denial or limitation of sanctions, the exclusion or restriction of extended discovery, and any ruling that permits Respondent to rely upon evidence it withheld or upon evidentiary gaps caused by its own failure to search and produce. Complainant further preserves the objection that failure to enforce the April 1 Order through an effective remedy would allow Respondent to obtain a litigation advantage from disobedience of a binding discovery Order after the relevance and scope of the discovery were fully litigated and decided.

XVII. REQUEST FOR RELIEF

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer rule separately on each request and:

1. GRANT this Amended Renewed Motion to Enforce;

2. FIND that Respondent violated the April 1, 2026 Order as to RFP Nos. 4 and 7;
3. FIND that the Villena Declaration's representation that no additional searches remained is contradicted and disproven by Respondent's sworn deposition testimony and later conduct;
4. FIND that Del Monte's sworn denial concerning the Import Coordinator title and his email signature is directly contradicted by Respondent's November 25, 2024 and July 8, 2026 business emails, and consider that contradiction in evaluating Respondent's credibility, good faith, custodian identification, and compliance;
5. FIND that Respondent materially misrepresented to the Commission that it requested a neutral, independent interpreter and that Complainant denied that request, when the contemporaneous email shows no such request was made;
6. DENY Respondent's request to strike or retake the depositions;
7. ORDER Respondent to complete the production described in Section XIII within five calendar days;
8. ORDER Respondent to identify by Bates range every document it contends satisfies RFP Nos. 4 and 7 as to CHSU4047424 and BSIU8431017;
9. ORDER Respondent to provide a privilege log for any responsive material withheld on privilege grounds;
10. ORDER Respondent to produce all disputed redacted information under the Protective Order or submit it for in camera review;
11. ORDER Respondent to provide the corrected sworn declaration described in Section XIII;
12. ORDER Respondent to preserve all potentially responsive emails, Magaya data, delivery orders, payment records, terminal records, warehouse records, phone records, and related evidence through final resolution of this proceeding and any Commission or judicial review;
13. PRECLUDE Respondent from relying upon any responsive material not timely produced and from relying upon the absence of records it failed to search for or produce;
14. DRAW an adverse inference that the withheld records would have been unfavorable to Respondent and would have supported Complainant's claims;
15. DEEM established that Respondent coordinated inland transportation, generated and transmitted delivery authority, directed delivery to its warehouse, communicated with the

- relevant transportation entities, paid or advanced transportation-related charges, and controlled cargo access and release based upon FormuKleen's account balance;
16. DEEM established that Respondent acted as an NVOCC in relation to the subject shipments, or alternatively deem the underlying operational facts established under 46 C.F.R. § 502.150(b)(1);
 17. REOPEN and EXTEND the discovery period for a sufficient period following Respondent's completion of the compelled production and service of the corrected sworn declaration, permit Complainant to pursue discovery authorized by the Commission's Rules as reasonably necessary to cure the prejudice caused by Respondent's noncompliance and develop the evidentiary record, and ADJUST all remaining deadlines accordingly;
 18. AWARD Complainant its reasonable enforcement-related costs and the reasonable costs caused by Respondent's noncompliance, including costs associated with the reopened discovery period, to the extent authorized;
 19. MAKE the express findings requested in Section XV and state the factual and legal basis for any denied remedy;
 20. IMPOSE any further sanction authorized by 46 C.F.R. § 502.150(b) necessary to prevent Respondent from benefiting from its disobedience;
 21. GRANT Complainant leave under 46 C.F.R. § 502.71(d) to exceed the applicable page limit; and
 22. GRANT such other and further relief as the Presiding Officer deems just.

CONCLUSION

The relevance and scope of RFP Nos. 4 and 7 were litigated and decided on April 1, 2026. Respondent was ordered to search and produce. The Order required a first-hand declaration identifying every repository, custodian, search, and search term, and confirming that no additional searches remained.

Respondent then swore that no searches remained. Its own principal custodian has now testified that his mailbox was not searched to collect third-party communications, that delivery orders were not searched, that arrival notices were not searched, that trucker communications were not searched, and that nobody searched his records for discovery. The same witness testified that every container had a written delivery order, that delivery orders were generated in Magaya, that delivery instructions and

changes were transmitted by email, that he communicated with DHY, Dolphin, Topsealand's agent, terminals, suppliers, warehouses, truckers, SeaBlue, and other third parties, that TSS advertises NVOCC and freight forwarding services on its public webpage, that TSS placed both subject containers on hold, that Respondent's files contain receipts, invoices, terminal records, and duty statements, that "of course there are emails," that the emails are accessible, and that they were never given to FormuKleen. Respondent's distribution lead independently confirmed that the hold instructions came from Ricky Villena by email, that the hold records exist in Outlook, that the hold was tied to FormuKleen's account balance and applied account-wide to cargo for which nothing was owed, and that Mr. Villena possesses every communication.

Respondent also made a materially false representation to the Commission concerning the interpreter request and used that false account to seek exclusion or repetition of sworn testimony. The same pattern appears in the Villena Declaration and in Del Monte's sworn denial of the "Import Coordinator" title appearing in his own November 25, 2024 and July 8, 2026 email signatures, including an email sent thirteen days after his deposition. Respondent's categorical representations repeatedly collapse when compared against Respondent's own records. Del Monte's testimony also collapsed against itself: he denied that his duties included coordinating imports and then, minutes later, described coordinating container pickup from terminals and delivery to warehouses. Del Monte Dep. Tr. 6:9-12, 7:13-8:4.

Complainant has now supplied the precise evidentiary support the July 14 Order stated was missing. The record no longer presents a speculative concern about incomplete discovery. It presents direct sworn proof that Respondent failed to perform the searches ordered by the Commission and failed to produce records that its own witnesses confirmed exist, are accessible, and were never turned over.

The Commission should not require Complainant to continue chasing enforcement of an Order it already obtained. Respondent should not be permitted to exhaust the discovery period through noncompliance, deprive Complainant of the records needed to examine witnesses and prove its claims, and then benefit from the evidentiary void it created. The April 1 Order should be enforced now through immediate production, meaningful sanctions, and reopening and extension of discovery sufficient to cure the prejudice Respondent created. Respondent should not profit from its disobedience, and Complainant should be restored to the position it would have occupied had the ordered evidence been produced before discovery closed.

DUTY TO CONFER

Complainant respectfully refers the Commission to the comprehensive conferral timeline shared in Complainant's Renewed Motion to Enforce of May 31, 2026.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

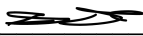
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Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Date: 07/15/2026

CERTIFICATE OF SERVICE

I certify that on July 15, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Ricky Villena

Top Shipping Systems, Corp.

12480 NW 25th Street, Ste. 100

Miami, Florida 33182

ricky.villena@tsscorp.us

Sara Dandan



EXHIBITS

Exhibit A - Certified Deposition Transcript of Eddy Del Monte, taken June 25, 2026.

Exhibit B - Certified Deposition Transcript of Isaac Sarmiento, taken June 26, 2026.

Exhibit C - June 13, 2026 email correspondence concerning Respondent's statement that its witnesses would require a Spanish translator, and Complainant's response.

Exhibit D - TSS email correspondence bearing Eddy Del Monte's email signature identifying him as Import Coordinator.